

****12.12.2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in November 2024, an investigation into the operator Public Transport Company Cluj-Napoca S.A. and found a violation of Article 5 paragraph (1) letters a), b), c), paragraph (2) and Article 6, correlated with Article 5 letters a)-d) of Law no. 190/2018, in relation to the provisions of Article 83 paragraph (5) letter a) of Regulation (EU) 2016/679. As such, the operator was sanctioned with a fine of 19,902 lei, equivalent to the amount of 4,000 euros.

The investigation was initiated following a complaint indicating that, at the level of Public Transport Company Cluj-Napoca S.A., audio-video surveillance cameras directed at the driver were installed in the driver's cabin of vehicles, with the possibility of online remote monitoring.

During the investigation, it was found that the operator illegally processed the personal data of a large number of employees in the position of driver, namely their image and voice through the audio-video surveillance system installed inside the driver's cabins of public transport vehicles (trolleybuses and buses), in violation of the provisions of Article 5 paragraph (1) letters a), b), c), paragraph (2) and Article 6 of Regulation (EU) 2016/679, correlated with Article 5 letters a)-d) of Law no. 190/2018.

Thus, for several years, the processing of personal data of the data subjects (employees) in the context of employment relationships was carried out by the operator in violation of the principles of personal data processing regarding legality, legitimacy, and limitation to what is necessary in relation to the purposes for which the data is processed.

It was also found that the images and sounds captured by the surveillance cameras were used by the operator for other purposes, including to the detriment of employees, in the context of disciplinary investigation and sanctioning procedures.

Furthermore, it was noted that this method of processing personal data through the surveillance system installed in public transport vehicles could affect, due to its illegal and excessive nature, other categories of data subjects (passengers), regarding the collection of their sounds/voices through the installed cameras.

Additionally, a corrective measure was imposed on the operator to ensure compliance with Regulation (EU) 2016/679 regarding the operations of collecting and further processing personal data, by reevaluating the necessity of achieving the proposed purposes, on the one hand, through the use of audio-video surveillance cameras installed inside the driver's cabins of public transport vehicles, and on the other hand, through the use of the audio option of the surveillance cameras installed in public transport vehicles, in accordance with the principles and conditions of legality provided by the Regulation and Law no. 190/2018.

In this context, we reiterate that Article 5 of Law no. 190/2018 provides:

“Processing of personal data in the context of employment relationships

In cases where monitoring systems are used through electronic communication means and/or through video surveillance at the workplace, the processing of personal data of employees, for the purpose of achieving the legitimate interests pursued by the employer, is permitted only if:

- a) the legitimate interests pursued by the employer are duly justified and prevail over the interests or rights and freedoms of the data subjects;
- b) the employer has provided the mandatory, complete, and explicit prior information to the employees;
- c) the employer has consulted the union or, as the case may be, the employee representatives before introducing the monitoring systems;
- d) other forms and less intrusive means to achieve the purpose pursued by the employer have not previously proven effective; and
- e) the duration of storage of personal data is proportional to the purpose of processing, but not longer than 30 days, except in cases expressly regulated by law or in duly justified cases.”

****Legal and Communication Department****

****N.A.S.P.D.C.P****